

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3240

By: Hasenbeck

AS INTRODUCED

An Act relating to schools; amending 70 O.S. 2021, Section 11-101.1, which relates to voluntary prayer; requiring school districts and charter schools to adopt a policy providing a period of prayer or religious text reading for students and employees on each school day; mandating certain policy language; requiring policy to include consent form and waiver of right to claims; specifying certain policy prohibitions; allowing consent to be revoked; prohibiting injury to others; providing suggestions for policy implementation; requiring the Attorney General to provide schools with compliance advice, defense of claims, and a model consent form; stating costs liability; clarifying applicability; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 11-101.1, is amended to read as follows:

Section 11-101.1. A. The board of education of each school district shall permit those students and teachers who wish to do so to participate in voluntary prayer. Nothing in this act shall be construed to permit the school curriculum to be used to teach or

1 inculcate students in sectarian or religious doctrine or to be in
2 conflict with Section 11-101 of Title 70 of the Oklahoma Statutes.

3 B. Beginning with the 2026-2027 school year, the boards of
4 education of school districts and the governing bodies of charter
5 schools shall adopt a policy described by subsection C of this
6 section requiring every public school to provide students and
7 employees with an opportunity to participate in a period of prayer
8 and reading of the Bible or other religious text on each school day
9 in accordance with this section. Such period may involve
10 opportunities for voluntary participation in individual or group
11 activities.

12 C. A policy adopted under this subsection shall include the
13 following statement: "It is the policy of (insert name of school
14 district or charter school) that every campus of (insert name of
15 district or school) shall provide a period of prayer and reading of
16 the Bible or other religious text in accordance with state law.
17 Such period may involve opportunities for voluntary participation in
18 individual or group activities."

19 D. A policy adopted under Subsection C of this section shall:

20 1. Prohibit a school employee or student of the school district
21 or charter school from being permitted to participate in the period
22 of prayer and reading of the Bible or other religious text unless
23 the school employee on his or her own behalf or the parent or
24

1 guardian of the student submits to the district or school a signed
2 consent form that includes:

3 a. an acknowledgment that the school employee or student
4 has a choice to participate in the period of prayer
5 and reading of the Bible or other religious text,

6 b. an identification of any opportunities to engage in a
7 period of individual or group activities of prayer and
8 reading of the Bible or other religious text,

9 c. a statement that the school employee on his or her own
10 behalf or parent or guardian of the student has no
11 objection to participating in or hearing of the
12 prayers or readings offered during the period, and

13 d. an express waiver of the right to bring a claim under
14 state or federal law arising out of the adoption of a
15 policy under this section, including a claim under the
16 Establishment Clause of the First Amendment to the
17 United States Constitution or a related state or
18 federal law, releasing the district or school and
19 district or school employees from liability for those
20 claims brought in state or federal court;

21 2. Prohibit the provision of a prayer or reading of the Bible
22 or other religious text over a public address system; and
23
24

1 3. Specify that a period of prayer or reading of the Bible or
2 other religious text shall not be a substitute for instructional
3 time.

4 E. A school employee on his or her own behalf or the parent or
5 guardian of a student may revoke consent provided under Subsection D
6 of this section by informing the appropriate school administrator,
7 as determined by the school district or charter school. A school
8 employee or student for whom consent has been revoked under this
9 subsection:

10 1. Shall not participate in the period of prayer and reading of
11 the Bible or other religious text until the school employee or
12 parent or guardian of the student submits to the district or school
13 a new consent form; and

14 2. Remains bound by the waiver described by subparagraph d of
15 paragraph 1 of subsection D of this section.

16 F. 1. The policy adopted under subsection B of this section
17 shall include provisions ensuring a prayer or reading of the Bible
18 or other religious text is not knowingly or intentionally provided
19 in the physical presence of, within the hearing of, or in another
20 manner which would constitute an injury in fact within the meaning
21 of the United States or Oklahoma Constitution on a person for whom a
22 signed consent form has not been submitted or has been revoked.

1 2. In order to comply with this subsection, the policy adopted
2 under subsection B of this section may allow that the period of
3 prayer and reading of the Bible or other religious text be provided:

4 a. before normal school hours, or

5 b. only in classrooms or other areas in which a consent
6 form has been submitted for every school employee and
7 student, which may include an entire school district
8 or charter school campus if a consent form has been
9 submitted for each school employee and student at the
10 campus.

11 G. 1. The Attorney General, on request from the board of
12 education of a school district or the governing body of a charter
13 school, shall provide advice on best methods for a district or
14 school to comply with the requirements of this section and shall
15 defend the district or school in a cause of action arising out of
16 the adoption of a policy under subsection B of this section. If the
17 Attorney General defends a school district or open enrollment
18 charter school under this subsection, the state is liable for the
19 expenses, costs, judgments, or settlements of the claims arising out
20 of the representation. The Attorney General may settle or
21 compromise any and all claims under this subsection. The state may
22 not be liable for any expenses, costs, judgments, or settlements of
23 any claims against a district or school which is not represented by

1 the Attorney General, arising out of the adoption of a policy under
2 this section.

3 2. The Attorney General's office shall provide a model consent
4 form that may be used for purposes of providing consent under
5 subsection D of this section.

6 H. This section shall not prohibit a school employee or student
7 of the district or school from participating in prayer or reading
8 the Bible or other religious text during a period of the school day
9 that is not designated as a period of prayer and reading of the
10 Bible or other religious text.

11 SECTION 2. This act shall become effective July 1, 2026.

12 SECTION 3. It being immediately necessary for the preservation
13 of the public peace, health or safety, an emergency is hereby
14 declared to exist, by reason whereof this act shall take effect and
15 be in full force from and after its passage and approval.

16
17 60-2-15102 SW 01/05/26
18
19
20
21
22
23
24